

Tentative Rulings and Resolution Review Hearings

July 6, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

- 1. Please mute your telephone until your case is called.**
- 2. Please do not place the call on hold.**
- 3. Minimize all background noise during your call.**
- 4. Please identify yourself, each time, prior to addressing the court.**
- 5. Disconnect when the court has completed your case or cases.**
- 6. The court prohibits the recording of these proceedings.**

8:30 a.m. – Law & Motion

ADK PROPERTIES LLC, ET AL. VS. FPI MANAGEMENT, INC., ET AL.

CASE NUMBER: 26CV-0210272

Tentative Ruling on Demurrer and Motion to Strike: Due to the voluminous calendar, there was insufficient time to review this matter and prepare detailed tentative rulings. In the interest of judicial economy and based on the Court's inherent authority to control its own calendar, hearings on both motions are continued to **Monday, July 13, 2026 at 8:30 a.m. in Department 63**. Should a July 13, 2026 hearing date pose an issue for either party, the parties are ordered to meet and confer regarding a new hearing date and appear to request a new date. Absent the need to select a different hearing date, **no appearance is necessary on today's calendar.**

BAKER VS. SMITH, ET AL.

CASE NUMBER: 26CV-0209620

Proposed Tentative on Motion for Leave to File First Amended Complaint: Plaintiff Robert Wayne Baker seeks leave to file a First Amended Complaint. The Proof of Service indicates service on Defendants' counsel by mail on June 16, 2026. This is not timely as all moving papers must be filed and served no less than sixteen

court days prior to the hearing and five calendar days are added for mail within the State of California. CCP § 1005(b). Defendants filed an Opposition on June 29, 2026, which is untimely. However, as service was late, the late Opposition is excused and will be considered.

CCP § 473(a)(1) permits any pleading to be amended in further of justice and on any terms as may be proper, after notice to the adverse party. The Court's discretion in this regard will usually be exercised liberally to permit amendment. *Nestle v. Santa Monica* (1972) 6 Cal. 3d 920, 939. "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." *Morgan v. Sup.Ct.* (1959) 172 Cal. App. 2d 527, 530. In general the Court should not concern itself with the validity of the proposed amendment in the motion for leave to amend. *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1048. The validity of the amendment can be challenged by a subsequent demurrer, motion for judgment on the pleadings, or other appropriate proceeding. *Id.*

Delay alone is not sufficient grounds to deny a motion to amend, absent prejudice to the opposing party. *Atkinson v. Elk Corp.* (2003) 109 Cal. App. 4th 739, 761. Prejudice exists, however, where the amendment would result in a delay of trial, loss of evidence, added preparation costs, additional discovery, or other costs. The weight of the prejudices is increased where there is no explanation for the delay in amending. *See, e.g., Magpali v. Farmers Group, Inc.* (1996) 48 Cal. App. 4th 471, 486-488; *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal. App. 4th 1332, 1345; *Fisher v. Larsen* (1982) 138 Cal. App. 3d 627, 649. Defendants presented no evidence of prejudice.

In addition to the merits of a motion, the Court must consider whether proper procedure was followed. CRC 3.1324(a)(2) and (3) require the moving party to state what allegations in the previous pleading are to be added or deleted and state where, by page, paragraph, and line number the deletions and additional allegations. A supporting declaration is required that contains all the information set forth in CRC 3.1324(b). Plaintiff did not follow CRC 3.1324 as the changes are not specified in sufficient detail and the declaration does not fully address each factor set forth in CRC 3.1324(b).

The motion is **DENIED** without prejudice for not complying with CRC 3.1324. Defendants' request for sanctions is **DENIED**. Plaintiff provided a proposed Order that will be modified to reflect the Court's ruling. Should Plaintiff elect to correct the defects and file for leave again complying with CRC 3.1324, Plaintiff is reminded to timely serve the motion per CCP § 1005(b) and to file a proof of service.

FASSBINDER, ET AL. VS. PG&E CORPORATION, ET AL.

CASE NUMBER: CVCV21-0198186

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on May 20, 2026 to Plaintiffs' counsel and Defendants' counsel for failure to provide the Court with status of the JCCP action. The matter was on calendar on May 11, 2026 and the tentative ruling required an appearance because neither party had filed a status statement. Neither party appeared, therefore, no status was provided. Plaintiffs have since filed a status statement informing the Court that a request for dismissal with prejudice will be filed shortly in the JCCP and counsel's intent is to do the same in this court. The Order to Show Cause is **DISCHARGED**. The matter is on calendar today at 9:00 a.m. for status.

HALL VS. LICKLITER, ET AL.

CASE NUMBER: 26CV-0210067

Tentative Ruling on Motion to Quash Service of Summons: Defendant Jacob Lickliter moves to quash service of summons. Plaintiff Lisa Hall opposes the motion.

Plaintiff filed Proof of Service of Summons on May 7, 2026 indicating that Defendant was served by personal service on May 5, 2026 at 5:34 p.m. with the note “I delivered the documents to Jacob Lickliter with identity confirmed by subject stating yes when named. The individual accepted service with direct delivery. The individual appeared to be a white male contact 45-55 years of age, 6’0”-6’2” tall and weighting 200-240 lbs.” Service was accomplished by Kristie Butler who checked Item 7.e.(1) indicating that she is not a registered California process server. The Proof of Service of Summons was signed under penalty of perjury on May 5, 2026 and complies with CCP § 2015.5.

In the moving papers, Defendant argues that he was not home at the alleged time of service and that the documents were actually served on his wife. This is not provided in his declaration. Instead, Defendant provides that he “was not served in the matter described in the Proof of Service.” *Defendant Decl.* ¶ 6. Defendant does not state how or when he received the papers. His declaration focuses on his employment with Corinth Coca-Cola Bottling Group and the Motus Application. A screenshot of his Motus Application is provided that Defendant asserts provides a portion of his afternoon on May 5, 2026 and shows that he did not arrive home from work until 6:00 p.m.

In the Reply, Defendant provided an email from counsel that attaches an email that counsel asserts is from Defendant’s supervisor. While the general rule is that evidence should not be submitted with a Reply, the Court has discretion to consider evidence submitted with a Reply so long as the opposing party is provided notice and an opportunity to be heard. *Los Angeles Unified School Dist. v. Torres Construction Corp.* (2020) 57 Cal. App. 5th 480, 499. In this instance, the Court considers the evidence, but does not admit it. This email is hearsay with no exception. There is no declaration provided by the supervisor.

Plaintiff argues that the presumption in Evid. Code § 647 applies. “The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.” Evid. Code § 647. Kristie Butler indicated that she is not a process server in California. The presumption in Evid. Code § 647 does not apply.

The competent evidence before the Court is the Proof of Service of Summons and Defendant’s Declaration. The Court does not find that the screenshot from the Motus Application has been properly authenticated. Even if it were, the timeframe at issue is less than thirty minutes. Defendant provided no evidence of how he received the papers and makes no mention of his wife in his declaration. Defendant did not provide a declaration from his wife. When balancing this against the statements in the Proof of Service of Summons, the Court finds that Defendant has not met his burden. Defendant has been properly served.

The Motion to Quash Service of Summons is **DENIED**. Defendant provided a proposed order that will be modified to reflect the Court’s ruling.

IN RE J.G. WENTWORTH ORIGINATIONS, LLC

CASE NUMBER: 26CV-0209619

Tentative Ruling on Petition for Approval for Transfer of Payment Rights: Petitioner J.G. Wentworth Originations, LLC seeks an order approving transfer of payment rights pursuant to California Insurance Code § 10134 et seq. Real Party in Interest/Transferor is Jerry Whipp. The operative petition is the Second Amended Petition filed on June 15, 2026.

Ins. Code § 10139.5(f)(2) requires notice of the proposed transfer and the application for its authorization must be served on all interested parties not less than 20 days prior to the scheduled hearing. The statute further requires

that a copy of the current petition, proposed transfer agreement and disclosure form, annuity contract, and other documents be served along with the notice. Ins. Code § 10134(g) provides that “Interested parties” means, with respect to a structured settlement agreement, the payee, the payee’s attorney, any beneficiary irrevocably designated under the annuity contract to receive payments following the payee’s death, the annuity issuer, the structured settlement obligor, and any other party who has continuing rights or obligations under the structured settlement agreement. The matter has been properly noticed.

The Court must determine whether the transfer is “fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents.” Section 10137(a). Payee seeks to transfer:

- 24 monthly life contingent payments of \$139.99 each, increasing annually by 4% beginning February 3, 2027 and ending January 3, 2029,
- 60 monthly life contingent payments of \$437.02 each, increasing annually by 4% beginning February 3, 2029 and ending January 3, 2034, and
- 108 monthly life contingent payments of \$2,212.53 each, increasing annually by 4% beginning February 3, 2034 and ending January 3, 2043.

In exchange, Payee will get \$52,651. Mr. Whipp is 48 years old and divorced. He has no minor children and is unemployed. He states in his declaration that he receives \$2,824.89 per month from his annuity, however Exhibit F shows that he presently receives \$3,500 per month. He does not have any court-ordered child support obligations. He has completed eight prior transactions transferring his annuity. He states that he is experiencing financial hardship. If approved, he will use the funds to pay fines that stem from a cultivation case and complete home repairs.

The Court intends to inquire of Mr. Whipp at the time of hearing regarding his understanding of the terms of the agreement in addition to the discrepancy in what he currently receives monthly from his annuity. The Court may deny or defer ruling on the petition if the Court believes that the payee does not fully understand the proposed transaction and that independent legal or financial advice should be obtained, pursuant to Insurance Code 10139.5(b)(14). Petitioner did not provide a proposed Order as required by Local Rule of Court 5.17(D). Petitioner is to prepare the Order. **An appearance by Mr. Whipp is necessary on today’s calendar.**

IN RE: JAIMEZ PARADA

CASE NUMBER: 26CV-0210313

Tentative Ruling on Petition for Change of Name: Petitioner Isaac Jaimez Parada seeks to change his name to Isaac Jaimez Parada. The change will make Jaimez Petitioner’s middle name instead of part of his last name. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: LABRASH

CASE NUMBER: 26CV-0210308

Tentative Ruling on Petition for Change of Name: Petitioner Melissa Sue Luce seeks to change her name to Melissa Sue LaBrash. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

LVNV FUNDING LLC VS. PEREDO

CASE NUMBER: 25CV-0208454

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on May 14, 2026 to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement

as required by CRC 3.1380(c) and Local Rule of Court 3.04. Both CRC 3.1380(c) and Local Rule of Court 3.04(A) require that a Mandatory Settlement Conference Statement be filed no later than five court days prior to the Mandatory Settlement Conference. The Mandatory Settlement Conference in this matter was to take place on May 18, 2026. The date was set at the time of filing as it was included in the Notice of All Purpose Assignment. Defendant had notice as the Notice of All Purpose Assignment was served with the Complaint and Summons. Neither party filed a written response to the Order to Show Cause. Without sufficient excuse for failing to timely file a Mandatory Settlement Conference Statement, monetary sanctions are imposed in the amount of \$250 against Plaintiff and counsel and \$250 against Defendant and counsel. The clerk is directed to issue separate Orders of Sanctions. The trial date of July 14, 2026 is confirmed.

MITCHELL, ET AL. VS. KNAPP

CASE NUMBER: 25CV-0208409

Tentative Ruling on Motion to Partially Reopen Expert Discovery: Defendant, Kandi Knapp, moves pursuant to CCP § 2024.050 to re-open discovery. This matter was set pursuant to a request for order shortening time. Plaintiffs' opposition was due on June 30, 2026, but was not served and filed until July 1, 2026. Despite Defendant's objection to the untimely filing, the Court in its discretion will consider the opposition.

Meet and Confer. CCP § 2024.050 requires a motion requesting to reopen discovery be accompanied by a meet and confer declaration. The Declaration of Courtney Wert indicates compliance with this requirement.

Merits. CCP § 2024.050(a) provides a court with discretion to grant leave to reopen discovery after a new trial date has been set. In exercising its discretion to grant or deny such a motion the Court should consider: 1) the necessity and reason for the discovery; 2) the diligence or lack of diligence in seeking the discovery or the hearing on the discovery motion; 3) any likelihood that permitting the discovery will prevent the case from going to trial; and 4) the length of the time elapsed between any date previously set, and the date present set, for the trial of the action. CCP § 2024.050(b).

This matter arises from a car accident which resulted in the death of the decedent. The parties have stipulated to liability and the only issue remaining is the determination of damages. Among other relief, Plaintiffs are suing for future wage loss, loss of future earning capacity, and non-economic damages for loss of love, companionship, care, comfort, and guidance. Defendant states that deposing the decedent's healthcare providers is necessary to determining the decedent's life expectancy and thus Plaintiffs' damages.

During discovery, Plaintiffs denied having knowledge about where the decedent received medical treatment prior to the incident. Defendant discovered that decedent was treated at Shasta Regional Medical Center ("SRMC") and Shasta Community Health through the review of Medi-Cal records received in March/April 2026. Defendant subsequently subpoenaed those records. Plaintiffs opposed the subpoenas and the parties entered a first look agreement on April 28, 2026. Defendant promptly reviewed the records upon receipt from Plaintiffs on June 12, 2026. While Defendant worked diligently to obtain the records from SRMC when it was discovered that the decedent was a patient there, it is unclear when the Medi-Cal records were requested and why they were not sought earlier during discovery. Defendant has not disclosed how many healthcare providers she seeks to depose or how the length of time needed to continue discovery related to these newly obtained records.

At the time this motion was set on a time shortened basis, trial was set to commence on July 7, 2026. When the order shortening time for this motion was heard, the Court alerted counsel that it was unlikely that the trial would proceed as scheduled due to the fact that the Court was engaged in another jury trial.

The Court remains engaged in the aforementioned jury trial, so the July 7, 2026, trial date has been vacated. In light of the fact that there is currently not a trial date set, permitting the additional requested discovery will not prevent the case from going to trial. Additionally, the Court finds the requested discovery is relevant to an

appropriate damage award given the impact decedent's medical conditions could have on his life expectancy.

Sanctions. Defendant requests sanctions in the amount of \$2,450 for attorney fees and costs for bringing the motion. CCP § 2024.050(c) states that "[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to extend or to reopen discovery, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." The Court will not impose sanctions, as, at the time Plaintiff opposed the motion, there was an upcoming trial date that Plaintiff wished to maintain. The Court finds this reason substantial justification for Plaintiff's opposition to the motion.

The motion is **GRANTED**. The Court orders discovery partially reopened to allow for depositions of decedent's health care providers at Shasta Regional Medical Center and Shasta Community Health. A proposed order was lodged with the Court and will be modified to reflect the Court's ruling.

PERRY VS. FARMER

CASE NUMBER: 26CH-0209631

Tentative Ruling on Motion for Attorney's Fees: Respondent Mark Farmer moves for recovery of attorney's fees. Petitioner Candilyn Perry was timely served with the motion by mail. However, the Opposition was untimely filed. The Opposition was filed on June 26, 2026 and a Supplemental Declaration was filed on June 29, 2026. The Opposition was due on June 22, 2026. CCP § 1005(b). This Court presided over the entirety of this case, including the trial, and recalls the underlying facts. Because the Opposition does not change the Court's tentative ruling, the Court will consider the late-filed Opposition. Respondent may still present oral argument at the time of the hearing.

CCP § 527.6 governs civil restraining orders. Subsection (s) provides that the prevailing party in an action brought pursuant to this section may be awarded court costs and attorney's fees, if any. CCP § 527.6(s). "[A] prevailing defendant can recover attorney fees in an action for injunctive relief against harassment, even if the action was brought in good faith and is not frivolous, if the trial court decides in its discretion to award such fees." *Krug v. Maschmeier* (2009) 172 Cal. App. 4th 796, 798. "The recovery of attorney fees under subdivision (s) of section 527.6 is committed to the trial court's discretion." *Wash v. Banda-Wash* (2025) 108 Cal. App. 5th 561, 568. In determining the amount of attorney's fees to which a litigant is entitled, an experienced trial judge is the best judge of the value of professional services rendered in his or her court. *Granberry v. Islay Investments* (1995) 9 Cal. 4th 738, 752.

Respondent is the prevailing party here, which means the Court has discretion to award fees and costs. The Court recalls the trial in this matter and exercises its discretion to award fees and costs. Counsel for Respondent requests \$7,640. However, the declaration of counsel is insufficient to warrant the amount requested. Timothy M. Prentiss II declared that "I incurred attorney's fees as follows" and goes on to list 5 hours of clerical work billed at \$150 per hour, 18.2 hours of paralegal work billed at \$250 per hour, and 5.5 hours of legal work with 2.7 hours being billed at \$400 per hour and 2.8 hours being billed at \$425 per hour. While it is possible to include paralegal fees in an award of attorney fees, clerical or administrative tasks are not recoverable. *Collins v. City of Los Angeles* (2012) 205 Cal. App. 4th 140. No billing records have been provided to support the paralegal or attorney time. No evidence has been provided to support the hourly rates requested. Therefore, the Court is only able to award attorney's fees based on what the Court can tell from the file.

The trial in this matter was March 19, 2026. The trial started at 1:30 p.m. and court was adjourned at 2:59 p.m. The trial was heard at the same time as an Order to Show Cause Re: Sanctions that issued to Respondent and counsel for failure to file CH-800 as ordered on February 9, 2026. Respondent appeared on one prior occasion to trial which was trial readiness on February 2, 2026. The only other appearances were post trial when Respondent

appeared on April 20, 2026 and June 1, 2026 for hearing on prior Motions for Attorney's Fees that were denied without prejudice for being untimely filed. Other than motions seeking attorney's fees, Respondent has only filed the CH-120 and CH-800. Based on the evidence before the Court, the Court finds that \$2,000 is a reasonable sum for attorney's fees in this matter. This is comprised of five hours of attorney time at the rate of \$400 per hour. The Court declines to award any paralegal time as sufficient evidence has not been provided.

The motion is **GRANTED** and fees will be awarded to Respondent in the amount of \$2,000. Respondent did not provide a proposed Order as required by Local Rule of Court 5.17(D). Respondent is ordered to submit a proposed order consistent with the Court's ruling here.

SPITSEN, ET AL. VS. NOR CAL OIL INC.

CASE NUMBER: 26CV-0210376

Tentative Ruling on Motion for Preference: Plaintiffs Roger Spitsen and Annette Spitsen move for preference pursuant to CCP § 36(a). Despite being properly noticed, Defendant Nor Cal Oil, Inc. did not oppose the motion.

(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in the action as a whole.

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

(b) A civil action to recover damages for wrongful death or personal injury shall be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a whole. A civil action subject to subdivision (a) shall be given preference over a case subject to this subdivision.

(c) Unless the court otherwise orders:

(1) A party may file and serve a motion for preference supported by a declaration of the moving party that all essential parties have been served with process or have appeared.

(2) At any time during the pendency of the action, a party who reaches 70 years of age may file and serve a motion for preference.

(d) In its discretion, the court may also grant a motion for preference that is accompanied by clear and convincing medical documentation that concludes that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months, and that satisfies the court that the interests of justice will be served by granting the preference.

(e) Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference.

(f) Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party.

(g) Upon the granting of a motion for preference pursuant to subdivision (b), a party in an action based upon a health provider's alleged professional negligence, as defined in Section 364, shall receive a trial date not sooner than six months and not later than nine months from the date that the motion is granted.

CCP § 36.

The Complaint in this matter was filed on April 14, 2026 and named only one Defendant other than Does. Proof

of Service of Summons was filed on May 29, 2026 indicating that Defendant Nor Cal Oil, Inc. was served on May 18, 2026. The Motion for Preference was filed on June 30, 2026. Defendant filed an Answer on June 18, 2026. CCP § 36(c)(1), which allows a party to file the motion after all essential parties have been served, has been satisfied.

Plaintiff Roger Spitsen turned eighty last month. Plaintiff Roger Spitsen has a substantial interest as he the one alleged to have suffered physical injury during a fall at a business owned by Defendant. Plaintiff has presented evidence that his current health conditions are such that a preference is necessary to prevent prejudicing the party's interest in the litigation.. No evidence has been submitted to the contrary and Defendant did not oppose the motion. Plaintiff therefore meets the requirements of mandatory preference pursuant to CCP § 36(a).

The motion is **GRANTED**. Tuesday November 3, 2026 is the 120th day. The Court intends to set the matter for trial no later than October 20, 2026. The Court will also vacate the presently set Mandatory Settlement Conference and set a Mandatory Settlement Conference approximately 4-6 weeks prior to the newly selected trial date. All trial related deadlines will be based on the new trial date. Plaintiffs provided a proposed Order that that will be modified to reflect the Court's ruling.

WYNHOFF VS. CITY OF REDDING

CASE NUMBER: 24CV-0204924

Tentative Ruling on Motion to Compel Independent Medical Examination: Defendant City of Redding moves for an order compelling Plaintiff September Wynhoff to sit for an Independent Medical Examination ("IME"). There is no dispute that an IME is warranted. However, the parties disagree on the parameters for the IME. Plaintiff specifically seeks the following limitations:

1. The examination shall be limited to matters reasonably necessary for diagnosis, evaluation, causation, and prognosis.
2. The examiner shall not inquire into liability issues for the purpose of obtaining additional factual testimony regarding disputed employment events.
3. The examination shall be video recorded in its entirety except during portions involving proprietary testing materials.
4. Plaintiff shall receive all reports, notes, scoring summaries, and non-proprietary materials generated by the examination.
5. To the extent proprietary testing data cannot be released directly to counsel, such data shall be made available to a qualified expert retained by Plaintiff.
6. The examination shall not exceed the duration reasonably necessary to complete the evaluation.

Based on the Opposition, it appears that item 3 should have read that the IME should be audio recorded. It appears that both parties are in agreement regarding no video. It also appears that the parties are in agreement as to item 4 and item 5. The time that Defendant asserts the exam will take is reasonable so item 6 is also not an issue.

The dispute appears to be mostly with items 1 and 2. Plaintiff seeks to prevent the examiner from eliciting information that was already provided in Plaintiff's previous depositions. In considering the facts presented in this case from those in *Golfland Entertainment Centers, Inc. v. Superior Court* (2003) 108 Cal. App. 4th 739, the Court finds that the facts and circumstances are drastically different. This case involves an adult and what is alleged to be a continuing course of conduct, rather than a child being injured in an isolated incident as in *Golfland*. Dr. Bahar Safei-Far has provided evidence of why questioning about the underlying facts is necessary to the IME process. As worded, items 1 and 2 are proper limitations. However, this should not be construed to limit the examiner from asking about facts already covered to the extent the examiner deems necessary.

The motion is **GRANTED**. Defendant requested an IME within one week. However, this matter is not set for trial until October 20, 2026, giving the parties additional time to conduct the examination. The Court orders the IME to take place within fifteen days of today. All limitations are ordered as described above with the exception of item 3 as neither party wishes to have the IME video recorded. Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

Tentative Ruling on Motion for Discovery of Peace Officer Personnel and Other Documents (County of Sonoma): Defendant City of Redding moves pursuant to Evid. Code § 1043 for disclosure of Plaintiff's peace officer personnel records from custodian of records for the County of Sonoma. Plaintiff has not filed an opposition to the Motion. The County of Sonoma has filed a Non-Opposition.

Merits of Motion. A motion to obtain a peace officer's personnel records or other documents maintained by a law enforcement agency related to a peace office is commonly known as a *Pitchess* motion. See *Pitchess v. Superior Court* (1974) 11 Cal.3d 531. *Pitchess* motions have been codified in Evid. Code § 1043 which requires a written motion in both civil and criminal actions. Evid. Code § 1043(a). The motion shall include: "1) identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency that has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard, 2) A description of the type of records or information sought" and "3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records." Evid. Code § 1403(b).

The discovery motion must include, among other things, a description of the type of records or information sought and affidavits showing good cause for their discovery or disclosure. *Riske v. Sup. Ct.* (2016) 6 Cal.App.5th 647, 655. "Good cause for discovery of peace officer personnel records under the statutory scheme exists when the party seeking the discovery shows the "materiality" of the information to the subject matter of the pending litigation and states upon "reasonable belief" that the agency has the type of information sought." *Id.* This initial burden is a "relatively low threshold for discovery". *Id.* A sufficient threshold showing is established if the party seeking records demonstrates through affidavits a "plausible factual foundation" for how the records are material to the subject matter of the pending litigation. *Id.* A "good cause" declaration may be made on information and belief and may be properly made by counsel. *Abatti v. Sup. Ct.* (2003) 112 Cal.App.4th 39, 51. If the threshold good cause is established, the second step is an *in-camera* review by the court in conformity with Evid. Code § 915 and the court shall disclose only that information falling within the statutorily defined standards of relevant. *Riske, supra* 6 Cal.App.5th at 655-56.

Plaintiff's Third Amended Complaint asserts causes of action for sexual harassment and retaliation in violation of the FEHA and failure to prevent harassment by the Redding Police Department. Here, Defendant is seeking a narrowly tailored list of personnel documents from Sonoma County relevant to its defense. The City's request is narrowly tailored to lead to the discovery of admissible evidence. Specifically, the City seeks: 1) All Personal History Statements ("PHS") submitted by Plaintiff September Wynhoff ("Plaintiff" or "Wynhoff") as part of the pre-employment background investigation process for the Sonoma County Sheriff's Office; and 2) Any documents relating to the pre-employment background investigation of Plaintiff, including employer questionnaires, interview notes, investigation reports and/or memoranda, correspondence, and any documentation regarding the decision not to hire Plaintiff. The Court finds that the information and documents sought are material to Plaintiff's claims or Defendant's defenses. The documents are relevant and would either be admissible or could potentially lead to the discovery of admissible evidence. The County of Sonoma does not object and seeks a standard protective order.

The Motion is **GRANTED**. A proposed order was lodged and will be executed, as modified. All released

documents will be designated Confidential pursuant to the Protective Order. The Court note that another *Pitchess* motion pertaining to the County of Siskiyou was recently continued to July 20, 2026. The County of Siskiyou likewise does not oppose the motion. In the interest of judicial economy, the Court intends to set the in-camera review for the same date and time. Therefore, this matter is continued to **Monday, July 20, 2026 at 8:30 a.m. in Department 63** to schedule the in-camera review. **No appearance is necessary on today's calendar for this motion.**

Tentative Ruling on Motion for Discovery of Peace Officer Personnel and Other Documents (County of Shasta): Defendant City of Redding moves pursuant to Evid. Code § 1043 for disclosure of Plaintiff's peace officer personnel records from the custodian of records for the County of Shasta. The motion is opposed by the County of Shasta. Plaintiff has not filed an opposition to the Motion.

Merits of Motion. A motion to obtain a peace officer's personnel records or other documents maintained by a law enforcement agency related to a peace office is commonly known as a *Pitchess* motion. See *Pitchess v. Superior Court* (1974) 11 Cal.3d 531. *Pitchess* motions have been codified in Evid. Code § 1043 which requires a written motion in both civil and criminal actions. Evid. Code § 1043(a). The motion shall include: "1) identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency that has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard, 2) A description of the type of records or information sought" and "3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records." Evid. Code § 1403(b).

The discovery motion must include, among other things, a description of the type of records or information sought and affidavits showing good cause for their discovery or disclosure. *Riske v. Sup. Ct.* (2016) 6 Cal.App.5th 647, 655. "Good cause for discovery of peace officer personnel records under the statutory scheme exists when the party seeking the discovery shows the "materiality" of the information to the subject matter of the pending litigation and states upon "reasonable belief" that the agency has the type of information sought." *Id.* This initial burden is a "relatively low threshold for discovery". *Id.* A sufficient threshold showing is established if the party seeking records demonstrates through affidavits a "plausible factual foundation" for how the records are material to the subject matter of the pending litigation. *Id.* A "good cause" declaration may be made on information and belief and may be properly made by counsel. *Abatti v. Sup. Ct.* (2003) 112 Cal.App.4th 39, 51. If the threshold good cause is established, the second step is an *in-camera* review by the court in conformity with Evid. Code § 915 and the court shall disclose only that information falling within the statutorily defined standards of relevant. *Riske, supra* 6 Cal.App.5th at 655-56.

The County of Shasta opposes the motion on the merits and also because a portion of the motion was filed under seal. Because the County of Shasta was not provided with the entire motion, the County of Shasta argues that they are unable to articulate an opposition. The Court agrees. While the City of Redding argues that the unredacted portions are sufficient to warrant the motion being granted, the City of Redding included the redacted information in their motion.

The Court notes that the same information was sought from the County of Siskiyou on June 29, 2026. The County of Siskiyou motion was continued to July 20, 2026, due to a service issue. However, the County of Siskiyou appeared at the hearing and indicated that they do not oppose the motion. Also on calendar today is a motion seeking the same information from the County of Sonoma. The County of Sonoma filed a Non-Opposition noting that they do not oppose the motion, so long as the standard procedure for an in-camera review occurs and a protective order issue.

Based on the entirety of the motion, it appears that the City of Redding has met the threshold with respect to granting an in-camera review as to the County of Shasta. However, the Court is not inclined to grant a motion when one party is objecting on the basis that they were not able to review the entire motion. The Court notes three possible options:

1. The Protective Order in the previous County of Trinity *Pitchess* Motion can be expanded to allow limited review by the County of Shasta.
2. An Amended Motion can be filed that does not contain any redacted information.
3. The parties agree that the City of Redding has provided good cause for an in-camera review.

The parties are ordered to meet and confer regarding the options above and be prepared to address the Court. The other two *Pitchess* motions will be on calendar on July 20, 2026. Absent a reason to order otherwise, the Court intends to move this hearing to the same date. **An appearance is necessary on today's calendar.**

9:00 a.m. – Review Hearings

BARTON, ET AL. VS. NORTH REDDING HOSPITALITY LLC

CASE NUMBER: 25CV-0208230

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan II case and intends to set the matter for trial no later than January 12, 2027. Plaintiff has posted jury fees but Defendant has not. Defendant is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

FASSBINDER, ET AL. VS. PG&E CORPORATION, ET AL.

CASE NUMBER: CVCV21-0198186

This matter is on calendar for review regarding status of JCCP. Plaintiffs filed a status statement informing the Court that a request for dismissal with prejudice will be filed shortly in the JCCP and counsel's intent is to do the same in this court. The matter is continued to **Monday, October 5, 2026 at 9:00 a.m. in Department 63** for status of JCCP and dismissal. If the matter has not been dismissed by October 5, 2026, the parties are ordered to file a status statement no less than five court days prior to hearing. **No appearance is necessary on today's calendar.**

GLANZER VS. OETZEL

CASE NUMBER: 25CV-0208503

This matter is on calendar for review regarding status of the case. The Court notes that there is no Proof of Service of Summons on file. Plaintiff did not file a status statement. The matter is continued to **Tuesday, September 14, 2026 at 9:00 a.m. in Department 63** for status of the case. Plaintiff is ordered to file a status statement no less than five court days prior to the next review hearing. **No appearance is necessary on today's calendar.**

LOMELI, ET AL. VS. DELIGHT FOODS, ET AL.

CASE NUMBER: CVCV18-0191244

This matter is on calendar for review regarding status of bankruptcies. No status statements were filed despite the parties being ordered to file a status statement at least five days prior to today's hearing. **An appearance by all parties is necessary on today's calendar.**

NELSON VS. WATERMAN REAL ESTATE INC, ET AL.

CASE NUMBER: 25CV-0207888

This matter is on calendar for a trial setting conference. The matter is at issue. Plaintiff has filed a status report indicating a request to set a further review hearing in 60 to 90 days. The Court is amenable to a further review hearing should all counsel be in agreement. Alternatively, if trial is to be set, the Court designates this matter as a Plan II case and intends to set the matter for trial no later than December 1, 2026. Only Defendants have posted jury fees. Plaintiffs and Cross-Defendants are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. **An appearance is necessary on today's calendar.**

RICCI VS. MORGAN AND MORGAN LLC, ET AL.

CASE NUMBER: 25CV-0207965

This matter is on calendar for review regarding settlement/dismissal. The parties informed the Court on May 19, 2026 that the matter settled. No status statements were filed despite the parties being ordered to file a status statement at least five days prior to today's hearing. **An appearance by is necessary on today's calendar.**

WELTY, ET AL. VS. REYES BARRERA, ET AL.

CASE NUMBER: 25CV-0208430

This matter is on calendar for review regarding status of service and responsive pleading. The Complaint is not at issue. There is no Proof of Service of Summons on file for Defendant Jose Gilberto Reyes Barrera. Proof of Service of Summons was filed on June 12, 2026 as to Doe 3 Rolling Freight, LLC and the deadline to file a responsive pleading has not been passed. There is no Proof of Service for the Cross-Complaint. The matter is continued to **Monday, August 31, 2026 at 9:00 a.m. in Department 63** for status of service and responsive pleadings. The parties are ordered to take the necessary steps to get the matter at issue prior to the next review hearing. The parties are ordered to file status statements at least five court days prior to the next review hearing. **No appearance is necessary on today's calendar.**